APPELLANT'S BRIEF

UNITED STATES COURT *OF* APPEALS *FOR* VETERANS CLAIMS

21-9

MARIA V. GUZMAN,

Appellant

v.

DENIS MCDONOUGH,

Secretary, Dept. Of Veterans Affairs

Appellee.

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TABLE OF CONTENTS

Table of Authorities and RBA Citations iii

Statement of Issues 1

Statement of the Case 2

A. Nature of the Case. 2

B. Relevant Facts and Procedural Developments. 4

Summary of Argument 11

Legal Argument 13

I. The Issues Raised in Appellant's Request for Revision Based on Clear and Unmistakable Error in the RO's Decision Were Not Subsumed by the 2015 Board Decision. The Board Never Addressed those Issues, So They Were Not Subsumed by the CAVC's Decision. 14

A. Res Judicata & Collateral Estoppel 14

B. Appellant's CUE Revision Request is Not Subsumed 18

The "Cacciola Effect" on Hillyard I & II 18

Effect of Abandonment of an Issue 19

II. The CAVC Should Exercise Its Equitable Powers to Honor Statutory and Regulatory Provisions Which Authorize and Endorse Entitlement to Benefits, Particularly Where Board Error Has Caused Harm and Prejudice to the Appellant; The Court's Exercise of This Power Would Summarily Grant Guzman's CUE Request 24

It Would Amount to an Absurd Result If A Pro Se Litigant's Direct Appeal, Straight to the CAVC, Leads to Permanently Unfavorable Results, While a Claimant Who Later Files CUE in an Unappealed Decision May Ultimately Prevail 28

Conclusion 30

TABLE OF AUTHORITIES AND RBA CITATIONS

CASES

Barrett v. Nicholson, 466 F.3d 1038, 1044 (Fed. Cir. 2006) 1

Brown v. West, 203 F.3d 1378 (Fed. Cir. 2000). 18

Cacciola v. Gibson, 27 Vet. App. 45, 53 (2014) 19-21

Cantu v. Principi, 18 Vet. App. 92, 99-100 (2004) 27

Dean v. McDonough, No. 20-5091, 2021 WL 3083133, at *4 (Vet. App. July 22, 2021). 1, 3, 13, 29

Disabled Am. Veterans v. Gober, 234 F.3d 682, 693 (Fed.Cir.2000) 12

Gutierrez v. Principi, 19 Vet.App. 1, 10 (2004) 28

Guzman v. McDonald, No. 15-3625, 2016 WL 4506312, at *1 (Vet. App. Aug. 29, 2016). 15

Guzman v. Shulkin, No. 15-3625, 2017 WL 2644477, at *1 (Vet. App. June 20, 2017) 10

Janssen v. Principi, 15 Vet.App. 370, 374 (2001). 21

Johnson v. Brown, 9 Vet.App. 7, 10 (1996). 28

McCay v. Brown, 106 F.3d 1577, 1581 (Fed. Cir. 1997) 2, 3

Mintzmyer v. Dep't of the Interior, 84 F.3d 419, 423 (Fed.Cir.1996) 16

Nat'l Cable Television Ass'n v. Am. Cinema Editors, Inc., 937 F.2d 1572, 1581 (Fed.Cir.1991) 19

Off. of Pers. Mgmt. v. Richmond, 496 U.S. 414, 426 (1990) 2, 3

Padgett v. Nicholson, 19 Vet. App. 133 (2005) 13

Parklane Hosiery Co. v. Shore, 439 U.S. 322, 327 (1979) 14

Pederson v. McDonald, 27 Vet. App. 276, 284 (2015), amended, No. 13-1853, 2015 WL 674734 (Vet. App. Feb. 18, 2015) 20, 21

Porriello v. Shulkin, 30 Vet. App. 1, 8 (2018) 22-24

Proceviat v. Shinseki, 524 F. App'x 674, 677–78 (Fed. Cir. 2013) 12

Russell v. Principi, 3 Vet.App. 310, 313-14 (1992) (en banc) 26

Soyini v. Derwinski, 1 Vet. App. 540, 546 (1991) 28

United States v. County of Cook, Ill., 170 F.3d 1084, 1088 (Fed.Cir.1999) 19

Winsett v. Principi, 341 F.3d 1329, 1331–32 (Fed.Cir.2003) 12

Young v. Brown, 4 Vet. App. 106, 108 (1993) 14, 17

Young v. Shinseki, 25 Vet.App. 201, 204 (2012) 15

STATUTES AND REGULATIONS

38 C.F.R. § 20.1400(b) 12

38 C.F.R. §3.153 . . . . . 1-4, 7, 8, 10, 12, 13, 15, 16, 20, 21, 24-26, 29, 30

38 U.S.C. §503(b) 10

38 U.S.C. §5105 . . . . . 1-4, 7, 8, 10, 12, 13, 15, 16, 20, 21, 24, 25, 30

38 U.S.C. §7261(a)(3)(A) 14

38 U.S.C. §7261(a)(3)(C) 14

38 U.S.C. §7261(a)(4) 13

38 U.S.C. §7261(b)(2) 14

OTHER AUTHORITIES

M21-1, Part IV, Subpart iii, Chapter 3, § A.3.d. 10, 15, 16, 21

U.S. Vet. App. Rule 30(a) 1

RECORD BEFORE THE AGENCY CITATIONS

R at 4 - 10 (4 - 10)(2020 BVA dec'sn) 11, 17

R at 26 - 27(26- 27)(VA 10182) 11

R at 33 (32 - 40)(March 2020 RO dec'sn) 11, 15, 17

R at 85 - 92 (80 - 97)(Request for revision) 10, 15, 22

R at 96 - 97 (80 - 97)(SSA claim) 4, 26

R at 295 (295)(DD-214) 4

R at 315 - 318 (315 - 318)(Doc #15-3625 OB) 6

R at 319 - 337 (319 - 337)(Doc #15-3625 Sec. Brief) 6

R at 338 - 340 (338 - 340)(CAVC memo dec'sn) 6, 19

R at 341 - 344 (341 - 344)(2015 CAVC dockt) 6, 17

R at 355 (355)(No rep notice) 6

R at 362 - 364 (362 - 364)(Recon denial) 5

R at 365 - 366 (365 - 366)(Recon req'st). 5

R at 367 - 375 (367 - 375)(2015 BVA dec'sn) 5, 14, 19

R at 422 - 423 (422 - 423)(VA-9) 5

R at 431 - 435 (431 - 435)(2014 SSOC) 5

R at 463 (461 - 485)(2012 SSC). 4, 25

R at 484 (484)(461 - 485)(June 2014 SOC). 5

R at 497 - 498 (497 - 498)(2013 NOD) 5

R at 499 - 517 (499 - 517)(2013 RO decs'n). 5

R at 574 (574)(Death Cert.) 4

R at 576 - 584 (574 - 587)(DIC appl) 4

R at 621 - 623 (617 - 623)(Med. Rpt) 4

STATEMENT OF ISSUES

1. Whether the Board's conclusion that it lacked jurisdiction to review Appellant's request for revision based on CUE, and its dismissal of that motion as moot, should both be reversed as clearly erroneous;

2. Whether the RO and BVA decisions were subsumed by the Court as to the current issues challenged.

3. Whether the Court should exercise its equitable powers, within the scope of its jurisdiction to insure that "all veterans entitled to benefits receive them", to include, under applicable statutes and regulations (ie. 38 C.F.R. §3.153, 38 U.S.C. §5105), granting statutory relief to which Appellant is entitled, because there exists documentary proof that the claimant is statutorily entitled to that benefit (ie. an earlier effective date for DIC benefits), (ie. summarily grant Appellant's request for revision based on CUE. *Dean v. McDonough*, No. 20-5091, 2021 WL 3083133, at *4 (Vet. App. July 22, 2021), quoting *Barrett v. Nicholson*, 466 F.3d 1038, 1044 (Fed. Cir. 2006).[1]; or in the alternative,

4) Whether the Court should exercise its equitable powers, to include equitable estoppel against the Board, to insure that the Board complies with applicable

[1]U.S. Vet. App. Rule 30(a). Citation to unpublished authority. This is a citation to non-precedential authority only for the persuasive value of its logic and reasoning, as no clear precedent exists on point, and when the cited action may have binding or preclusive effect in the case on appeal. A discussion of the reasoning follows later in this brief.

regulatory and statutory authority under 38 C.F.R. §3.153 and 38 U.S.C. §5105, which sanctions and authorizes a statutorily recognized claim for death benefits - and, ipso facto, warrants entitlement to an earlier effective date for DIC benefits. *McCay v. Brown*, 106 F.3d 1577, 1581 (Fed. Cir. 1997) (...equitable estoppel is available against the government...where Congress ...has authorized such a payment); *Off. of Pers. Mgmt. v. Richmond*, 496 U.S. 414, 426 (1990) (...judicial use of the equitable doctrine of estoppel [where there exists]...a money remedy that Congress has ... authorized).

STATEMENT OF THE CASE

A. NATURE OF THE CASE. Appellant, Maria V. Guzman, appeals a December 18, 2020 VA Board decision which dismissed her appeal of entitlement to an effective date earlier than May 14, 2012 for the award of Dependency and Indemnity Compensation (DIC) under 38 U.S.C. § 1151, based on alleged clear and unmistakable error (CUE) in a June 19, 2013 rating decision. Appellant is the surviving spouse of the veteran. There are four issues challenged: 1) Whether, the Board's finding that it lacked jurisdiction of the matter, followed by the subsequent dismissal of the CUE request as moot, is clearly erroneous; 2) Whether the RO and BVA decisions were subsumed by the Court as to the current issues challenged; 3) Whether the Court should exercise its equitable powers, within the scope of its

jurisdiction to insure that "all veterans entitled to benefits receive them", to include, granting statutory relief under applicable statutes and regulations (*ie*. 38 C.F.R. §3.153, 38 U.S.C. §5105) to which Appellant is entitled, since there exists documentary proof that the claimant is statutorily entitled to that benefit (ie. an earlier effective date for DIC benefits); thereby summarily granting Appellant's request for revision based on CUE. *Dean v McDonough*, *Id*.; or 4) in the alternative, whether the Court should exercise its equitable powers, to include equitable estoppel against the Board, for erroneously relying on subsumption to dismiss the CUE request as moot, and to insure that the Board complies with applicable regulatory and statutory authority under 38 C.F.R. §3.153 and 38 U.S.C. §5105, which sanctions and authorizes a statutorily recognized claim for death benefits - and, ipso facto, warrants entitlement to an earlier effective date for DIC benefits. *Id., McCay v. Brown; Off. of Pers. Mgmt. v. Richmond*.

Appellant requests that this Court, in light of this case's unique circumstances, use its equitable powers to grant statutory relief under the applicable statutory and regulatory authority of 38 U.S.C. §5105 and 38 C.F.R. §3.153 which sanctions and authorizes entitlement to the benefit of an earlier effective date for DIC to which the Appellant is entitled, hereby summarily granting Appellant's request for revision based on CUE; or in the alterative, Appellant requests reversal of the December 18, 2020 Board's decision which dismissed Appellant's request for CUE revision as

moot, and remand the case to the Board with an Order of equitable estoppel against the Board, and directing the Board to comply with applicable regulatory and statutory authority under 38 C.F.R. §3.153 and 38 U.S.C. §5105.

B. RELEVANT FACTS AND PROCEDURAL DEVELOPMENTS.

Veteran, Cesar Antonio Flores Rivera, served honorably in the U.S. Army from February 1964 to February 1966. R at 295 (295)(DD-214). He was transferred to the Army Reserves for a two year obligation. *Id*. He died on June 18, 1995 while a patient at a VA Hospital, San Juan, Puerto Rico. R at 621 - 623 (617 - 623)(Med. Rpt). The cause of death listed on the death certificate is sepsis. R at 574 (574)(Death Cert.)

On or about July 10, 1995 (less than one month after the veteran's death), Mrs. Guzman filed a claim for death benefits with the Social Security Administration (SSA). The SSA, after "check[ing] to see if you could receive any other Social Security benefit on CESAR A FLORES-RIVERA's record", granted the claimant entitlement to the one time lump sum death payment benefit (LSDP) in the amount of $255.00 effective July 10, 1995. R at 96 - 97 (80 - 97)(SSA claim).

VA's June 2014 SOC indicates that VA received a Statement in Support of Claim from claimant on May 14, 2012, but this SSC is missing from the RBA. R at 463 (461 - 485)(2012 SSC). In January 2013, Mrs. Guzman filed a claim for DIC on VA form 21-534. R at 576 - 584 (574 - 587)(DIC appl). In a June 2013 RD, the

VA granted DIC for the claimant effective May 24, 2012, and denied a claim for accrued benefits. R at 499 - 517 (499 - 517)(2013 RO decs'n).

Mrs. Guzman appealed the effective date in a June 27, 2013 NOD. R at 497 - 498 (497 - 498)(2013 NOD). The VA issued a June 24, 2014 SOC, in part stating:

> The veteran passed away on June 18, 1995. A search of all available records and resources shows that a claim for entitlement to death benefits was not filed within one year of the Veteran's death; therefore entitlement to an effective date of June 1, 1995 is not warranted.

R at 484 (484)(461 - 485)(June 2014 SOC). The following day, the VA issued a SSOC confirming the denial of an earlier effective date for DIC. R at 431 - 435 (431 - 435)(2014 SSOC).

Mrs. Guzman continued her appeal with the July 10, 2014 filing of a VA Form 9. R at 422 - 423 (422 - 423)(VA-9). On July 16, 2015, the Board denied an earlier effective date for DIC, finding that appellant did not raise a claim for entitlement to DIC within one year of death; thus, the criteria for entitlement to an effective date prior to May 14, 2012 for the award of DIC have not been met. R at 367 - 375 (367 - 375)(2015 BVA dec'sn). Mrs. Guzman requested reconsideration of the Board's decision in a July 24, 2015 SSC. R at 365 - 366 (365 - 366)(Recon req'st). The Board denied the claimant's request in a September 8, 2015 decision. R at 362 - 364 (362 - 364)(Recon denial).

The claimant filed a notice of appeal with the CAVC on September 19, 2015.

See R at 341 - 344 (341 - 344)(2015 CAVC dockt). In an October 25, 2015 SSC, Mrs. Guzman informed the court that "lawyer [K.L.] will not represent me. Therefore, I can continue appeal through myself, pro se." R at 355 (355)(No rep notice). Later, the Veteran's Consortium Pro Bono Progam entered a limited appearance at the CAVC on January 27, 2016 to conduct case evaluation. *See* January 26, 2016 CAVC docket entry, *Id*. In a February 2016 filing, however, the Consortium gave Notice Under Rule 46(c)(2)(B), stating that the case fails to meet program requirements for assignment to an attorney. *Id*. The claimant continued her appeal as a pro se litigant.

Appellant filed an opening brief in docket # 15-3625 on February 23, 2016. R at 315 - 318 (315 - 318)(Doc #15-3625 OB). She argued, in part, that she was denied the "duty to assist" and "due process of law" because the Board failed to apply or mis-applied a law case or regulation. *Id*. at 316. The Secretary filed its responsive brief on June 9, 2016. R at 319 - 337 (319 - 337)(Doc #15-3625 Sec. Brief). The CAVC reached a memorandum decision which affirmed the BVA's decision denying an earlier effective date for DIC. R at 338 - 340 (338 - 340)(CAVC memo dec'sn). Mandate issued on November 22, 2016. *See* CAVC docket, *Id*..

Appellant's current counsel entered an appearance in CAVC docket # 15-3625 on March 2, 2017, followed by a March 3, 2017 motion for leave to file a motion to recall the mandate, along with a motion for leave to exceed the page limits for motions. *Id., See* CAVC docket # 15-3625. The motion for leave to move to recall

mandate stated in part:

> As grounds for this motion, appellant contends that there is good cause to grant her leave to file the motion to recall the mandate, in order to seek to prevent an injustice to her. Appellant was not represented by counsel in this appeal, and her newly retained counsel has identified substantive laws, regulations and pertinent evidence - not disclosed to the Court in the underlying appeal - which will change the end results of her appeal. The facts pertinent to her motion are pled in the underlying motion to recall mandate.

Appellant's motion to recall mandate was "received" by the CAVC on March 2, 2017 and accepted for filing on April 19, 2017. *Id*. In her motion she argues, in part:

> In this case, a key regulation was ignored, and a grave procedural error was neither disclosed nor addressed by any of the three levels of VA representatives in this case, including at the Court. The representatives consist of personnel at the Department of Veterans Administration, the Board of Veterans Appeals and the General Counsel's - Professional Group VII (ie. the Secretary's counsel at this Court). Had the regulation been addressed and/or had the procedural error been disclosed or addressed at any level, a vastly different, in fact, opposite result would have been reached in this matter and Appellant would have been granted an effective date of June 1995 for her DIC claim.
>
> 38 C.F.R. §3.153 provides that an application for Social Security benefits filed with the Social Security Administration on or after January 1, 1957 will be considered a claim for death benefits and to have been received by the Department of Veterans Affairs as of the date of receipt at the Social Security Administration. 38 C.F.R. §3.153;
>
> As a matter of law, therefore, VA is required to recognize an application to SSA as an application to the VA with respect to a claim for survivors benefits, even if the application is not received by the VA. cf. 38 U.S.C. §5105(b).
>
> In implementing this important regulation and law to insure that all survivors claims are properly handled, the VA has in place very detailed

procedural requirements which are set forth in its M21-1MR. Whenever an award for DIC is being processed, any claim filed more than one year after the date of the veteran's death, the M21-1MR contains important procedural rules which the VA is required to follow.

The VA did not follow it own rules and procedures in this case. The evidence of record establishes that, shortly after the veteran's death in June 1995, the Appellant filed an application for death benefits with the Social Security Administration (SSA). The SSA awarded her death benefit on July 10, 1995. (See attached Exhibit A).

As a matter of law, the claim filed with Social Security is also a claim for DIC. 38 CFR §3.153, 38 USC §5105, and VA's M21-1MR requires that the VA recognize applications to SSA as applications to VA for all applications filed after 1/1/57 even if a DIC application is not received by VA. See also *Van Valkenburg v. Shinseki*, 23 Vet. App. 113.

The BVA...committed grave errors in this matter. ... [T]he Board not only failed to consider the most pertinent DIC statute and regulation, but the Board also failed to insure that the VA had correctly followed its own procedures for a DIC claim filed in excess of one year after the date of the veteran's death. ... [T]he Board ... summarily found that the 2012 DIC claim was the first claim filed. There is evidence in the record that the VA lost the veteran's claims file in July 1995. ...The fact that all records from 1995 were not available should have triggered the Board's heightened duty to investigate claimant's allegations that she first filed a claim for DIC in 1995, to include consideration of 38 C.F.R. §3.153, ruling out whether she had previously filed a claim for death benefits with the Social Security Administration.

In briefing before this Court, the Secretary's counsel also failed to acknowledge and disclose to the Court the controlling regulation and statute, ie. 38 C.F.R. §3.153, 38 U.S.C. §5105(b) and the M21-1MR procedures for DIC claims filed more than one year after the veteran's death. (M21 rules are considered substantive rules and are binding on the VA. Fugere v. Derwinski, 1 Vet. App. 103, 107 (1990); aff'd 972 F.2d 331 (Fed. Cir. 1992)).

These failures are exacerbated by the fact that Mrs. Guzman was not

represented by counsel before the VA, the Board or this Court. Appellant, a 78 year old disabled claimant, sought representation by counsel through the only way she knew. She contacted the Pro Bono Consortium. However, the Consortium turned down her case. So, she filed her brief and made the arguments for her case to the best of her abilities.

The cumulative failings and oversights of the VA, the Board and the Secretary's counsel at all levels of the claims adjudication and appeals process is tantamount to judicial oversight, thus fitting the definition of unusual circumstances to justify a Court's exercise of its power to recall this mandate. McNaron v. Brown, 10 Vet. App. 61 (1997), citing to Patterson v. Crabb, 904 F.2d 1179,1180 (7 Cir. 1990) (Court recalled its mandate where its dismissal of the petitioner's claim was based on the absence of a required final order, which had been entered but overlooked by the court). In this case, the responsible parties at VA, at all levels either failed to disclose or overlooked an important law and procedure.

Appellant's appeal was about an earlier effective date for her DIC claim. And since there is no such thing as a free-standing claim for an earlier effective date, by virtue of this Court's judgment and mandate, this 78 year old Appellant has reached the end of the road. There can be no re-openings of this type of claim because the final judgment of this Court is "law of the case" on this effective date issue. In this veteran friendly environment, however, claims filed before the VA have no statute of limitations and can be re-opened at any time. But the issue of the effective date of a claim is a down-stream issue which does not stand alone as a claim. The same opportunity to "re-open" the claim at the Court, in light of the clear mis-steps heretofore referenced, should be available to a claimant under these egregious circumstances. If this case is not re-opened, Mrs. Guzman will lose a huge award totaling approximately 17 years of back benefits for DIC. A recall must be issued, to give her counsel the opportunity to either litigate the matter or settle the appeal, in light of the new evidence now before this Court. Operating in a veteran-friendly environment, it is incumbent upon this Court, given the obvious injustice that would come to Mrs. Guzman to recall the judgment and mandate in this matter.

In a June 20, 2017 decision the CAVC denied Appellant's motion to recall mandate. In denying the motion, the Court ruled, in part:

> "The Court is sympathetic to the fact that the appellant was not represented below or at this Court. However, the allegations that the Secretary overlooked the information about the appellant's application for Social Security benefits are not a basis for recalling mandate."

In a footnote, the Court further ruled:

> "This Court is not a Court of equity and cannot correct every injustice in the law. *See Moffitt v. Brown*, 10 Vet.App. 214, 225 (1997) (stating that the Court "is not a court of equity and cannot provide equitable relief"). However, the Secretary does have equitable powers under 38 U.S.C. §503(b)"

Guzman v. Shulkin, No. 15-3625, 2017 WL 2644477, at *1 (Vet. App. June 20, 2017)

On October 17, 2019, the Claimant filed a request for revision based on CUE with the VARO.[2] The issues raised in the CUE motion are whether the VA properly followed and properly applied the correct application of the law and the correct utilization of its own manual procedures, to wit: 1) the VA failed to consider and properly apply the provisions of 38 C.F.R. §3.153 and 38 U.S.C. §5105; and that 2) the VA failed to follow its own procedures set forth in its M21-1MR adjudication manual which provides guidance for determining the correct effective date of a DIC award. (ie. the M21-1, Part IV, Subpart iii, Chapter 3, § A.3.d.). R at 85 - 92 (80 - 97

[2] A request for revision based on CUE is tantamount to a request for equitable relief under 38 USC §503(b).

)(Request for revision). In a March 2020 decision, the VARO denied the claim:

> "As this issue has been previously denied by both BVA and CAVC, we are *unable to review this decision based on a claim for clear and unmistakable error without the submission of new and material evidence*." [emphasis added].

R at 33 (32 - 40)(March 2020 RO dec'sn). Form VA 10182 was filed on March 25, 2020. R at 26 - 27(26- 27)(VA 10182). The Board, ruled:

> "the RO's June 2013 decision was subsumed by the July 2015 Board decision; thus, the appellant is legally precluded from claiming CUE, as the July 2015 Board decision subsumed that rating decision." "Furthermore, after the Court affirmed the Board's decision, the Board's decision was subsumed. In essence, the Court's opinion replaces the Board decision regarding this issue. See *Winsett v. Principi*, 341 F.3d 1329, 1331-1332 (Fed. Cir. 2003)."

The Board concluded that "[t]he attempted CUE claim will be appropriately dismissed as moot. *See Sabonis v. Brown*, 6 Vet. App. 426 (1994); *Winsett v. Principi*, 341 F.3d 1329, 1331-32 (Fed. Cir. 2003). R at 4 - 10 (4 - 10)(2020 BVA dec'sn). This appeal followed.

SUMMARY OF ARGUMENT

The Board's Order dismissing as moot the claimant's request for revision based on clear and unmistakable error should be reversed because the Board has jurisdiction to review claims and issues which have not been barred by collateral estoppel and res judicata. A prior decision ... can be barred by res judicata and is not subject to revision if they are either: "(1) decisions *on issues* which have been

appealed to and decided by a court of competent jurisdiction;" or "(2) decisions *on issues* which have subsequently been decided by a court of competent jurisdiction." 38 C.F.R. § 20.1400(b); see *Winsett v. Principi*, 341 F.3d 1329, 1331–32 (Fed.Cir.2003); *Disabled Am. Veterans v. Gober*, 234 F.3d 682, 693 (Fed.Cir.2000). *Proceviat v. Shinseki*, 524 F. App'x 674, 677–78 (Fed. Cir. 2013). The original June 2013 RO decision appealed from was on the merits as to the issue of an earlier effective date. The CUE request is entirely different from an appeal for an EED. The CUE involved failure to properly apply 38 C.F.R. §3.153 which is a different issue never before decided by the RO or the Board. Neither the June 2013 RO decision nor the 2015 Board decision have been subsumed.

Since the Court "may exercise [its] equitable powers, within the scope of its statutory jurisdiction, to ensure that 'all veterans entitled to benefits receive[ ] them'," although the Court in exercising those powers, is not free to disregard applicable statutory and constitutional requirements and provisions that otherwise prohibit entitlement, the Court is free to *heed or honor* all applicable statutory and constitutional requirements and provisions which *authorize and endorse entitlement to benefits*, particularly when those applicable statutory provisions were overlooked by the VA, thereby causing severe harm and prejudice to the Appellant. Because there is documentary proof in the record that Mrs. Guzman is statutorily entitled to the benefit by application of the laws and regulations under 38 C.F.R. §3.153 and 38

U.S.C. §5105, the CAVC should exercise its equitable powers to grant the regulatory and statutory relief to which Mrs. Guzman is entitled to under these laws, which summarily sanction and authorize entitlement to the benefit of an earlier effective date for DIC to which Appellant is entitled; thereby, summarily granting Appellant's request for revision based on CUE. *Dean v. McDonough, Id.*; or in the alternative, the CAVC should reverse the Board's decision, 1) Order that the Board legally erred in relying on the doctrine of subsumption to dismiss Appellant's CUE request as moot; 2) reverse the Board's decision and Order that the RO's and the Board's decisions were not subsumed by the 2016 CAVC memorandum decision as to the issues in Appellant's Request for Revision Based Upon CUE; 3) Order that the Board is equitably estopped from relying on subsumption, and further 4) Order that the Board comply with 38 C.F.R. §3.153; 38 U.S.C. §5105.

LEGAL ARGUMENT

The Court reviews claimed legal errors of the Board under the de novo standard of review. In the case of a finding of material fact adverse to the claimant made in reaching a decision in a case before the Department with respect to benefits under laws administered by the Secretary, the Court shall hold unlawful and set aside or reverse such finding if the finding is clearly erroneous. 38 U.S.C. §7261(a)(4). *Padgett v. Nicholson*, 19 Vet. App. 133 (2005). Also, the Court will set aside any

findings or decisions which are arbitrary and capricious, an abuse of discretion, or otherwise not in accordance with law or in violation of a statutory right within the meaning of 38 U.S.C. §7261(a)(3)(A), 38 U.S.C. §7261(a)(3)(C); *Young v. Brown*, 4 Vet. App. 106, 108 (1993). The Court should also take due account of the rule of prejudicial error. 38 U.S.C. §7261(b)(2).

I. The Issues Raised in Appellant's Request for Revision Based on Clear and Unmistakable Error in the RO's Decision Were Not Subsumed by the 2015 Board Decision. The Board Never Addressed those Issues, So They Were Not Subsumed by the CAVC's Decision.

A. Res Judicata & Collateral Estoppel

Under the doctrine of res judicata, a judgment on the merits in a prior suit bars a second suit involving the same parties or their privies based on the same cause of action. Under the doctrine of collateral estoppel, on the other hand, the second action is upon a different cause of action and the judgment in the prior suit precludes relitigation of issues actually litigated and necessary to the outcome of the first action. *Parklane Hosiery Co. v. Shore*, 439 U.S. 322, 327 (1979).

Collateral estoppel and res judicata do not apply to the claimant's revision request which is on appeal. The issue before the 2015 Board pertained to its finding that no prior claim for DIC had been filed. *See* R at 368, *Id*. The request for revision issue filed against the RO's initial decision at the RO level, and which is now before the current 2020 Board, challenges the VA's failure to correctly consider and apply

existing laws and regulations (*ie*. 38 C.F.R. §3.153, 38 U.S.C. §5105), as well as its failure to follow its own procedural guidance in its adjudication manual (ie. M21-1MR, Part IV, iii.3.A.3.d.). *See* R at 80-97, *Id*. The RO-CUE revision request is entirely different from the Board's 2015 decision which denied an earlier effective date on the merits. In addition, the issue of the applications of the regulation and statute at §3.153, §5105 and the challenge to VA manual guidance procedures have never been previously appealed to Court.

Appellant's CUE revision request, as detailed above, is a different issue never before decided by the RO. Yet the RO determined that "... this issue has been previously denied by both BVA and CAVC...". *Id*., R at 33. The RO further wrongfully determined that the claimant must provide "new and material evidence" in order for the CUE request to be considered. *Id*. Moreover, the issues challenged in claimant's CUE request have never before been decided by the 2015 Board or by the CAVC in its November 2016 memorandum decision. *See Guzman v. McDonald*, No. 15-3625, 2016 WL 4506312, at *1 (Vet. App. Aug. 29, 2016). The sole merits issue before the Board and the CAVC was entitlement to an earlier effective date; and the issue was based on the lack of record evidence that an earlier claim for DIC had been filed. ("Here, there is no record evidence that Ms. Guzman filed a claim for DIC earlier than May 14, 2012, the assigned effective date of her award of DIC"). *Id*.

In *Young v. Shinseki*, 25 Vet.App. 201, 204 (2012), this Court, citing to the

Federal Circuit decision in *Mintzmyer v. Dep't of the Interior*, 84 F.3d 419, 423 (Fed.Cir.1996) determined that collateral estoppel, or issue preclusion, applies when "(1) the issue previously adjudicated is identical to the one currently before the Court; (2) the issue was 'actually litigated' in the prior proceeding; (3) the Court's resolution of that issue was necessary to the resulting judgment; and (4) *the litigant was fully represented in the prior proceeding*." [emphasis added].

Based on the *Young* Court factors determining whether collateral estoppel applies, Mrs. Guzman's request for revision clearly does not satisfy the requirements for collateral estoppel or issue preclusion. First, the issue previously adjudicated is entirely different than the CUE issues currently before the Court. The issue in 2015 involved a determination of whether an earlier claim for DIC had been filed, warranting an earlier effective date. The issues in the CUE request before the Court are whether the VA properly considered and applied existing laws and regulations (ie. 38 C.F.R. §3.153, 38 U.S.C. §5105), as well as whether the VA followed its own procedural guidance in its adjudication manual (ie. M21-1MR, Part IV, iii.3.A.3.d.), so as to ultimately determine whether the claimant's 1995 SS application should be recognized as a claim for DIC.

Next, elements "2" and "3" don't apply to this appeal, as it is clear that the CUE revision issues were never 'actually litigated' in the prior proceeding because

the aforementioned laws, regulations and manual provisions were never discussed in the prior proceeding before the RO, the Board or the CAVC. So, the CAVC never resolved the instant issues because the instant issues (related to CUE) were not before it when it made the 2016 decision. In fact, those issues were never even litigated in the instant proceeding on appeal because both the 2020 RO and Board decisions were denied based upon the subsumption doctrine. In other words, the RO stated that it was unable to review the CUE request due to the "issue" having been "previously denied by both BVA and CAVC". *Id*., R at 33. And the 2020 BVA dismissed the CUE request as legally "moot" because the Board's July 2015 decision has been subsumed by the CAVC's 2016 memorandum decision. *Id*., R at 4-10.

The last *Young* element which is related to "full representation in the prior proceeding" also does not apply to qualify for issue preclusion here. Mrs. Guzman, who acted pro se throughout, and who vigorously pursued each step of her case in a direct appeal to the Court, was not represented before the RO the Board or the Court. Despite all efforts to retain counsel, Mrs. Guzman had no other choice than to represent herself pro se at the Court. Her case was rejected both by a private attorney and then later, also rejected by the Veterans Pro Bono Consortium. See 2015 docket at R at 341 - 344, *Id* at dates 10-23-15 and 2-23-2015 indicating notices of non-representation and withdrawal by counsel. Accordingly, the fourth element of issue

preclusion in *Young* does not apply here.

B. Appellant's CUE Revision Request is Not Subsumed

The 2015 BVA decision did not subsume the RO's June 2013 decision, and the 2015 BVA decision was not subsumed by the Court as to the current CUE issues challenged. In *Brown v. West*, 203 F.3d 1378 (Fed. Cir. 2000), the Court held that a challenge to a Veterans Administration regional office (RO) decision denying benefits as constituting "clear and unmistakable error" may not be raised before the RO if the Board of Veterans' Appeals has sustained the RO determination *on the same issue*. [emphasis added]. The *Brown* court explained that only if the substance of the challenge to the prior RO determination was rejected in an intervening decision of the Board of Veterans' Appeals would the RO decision as to that issue be considered subsumed. Otherwise, the Board decision does not subsume the RO decision as to that issue. *Id*., at 1381. As such, here, the Board's finding and conclusion that

> "...the appellant is legally precluded from claiming CUE, as the July 2015 Board decision subsumed that rating decision. *In effect, the RO decision ceased to exist as an independent decision and became part of the subsequent Board decision*." [emphasis added]

is clearly erroneous.

The "Cacciola Effect" on Hillyard I & II

As to the 2020 Board's determination that its 2015 BVA decision was subsumed by the CAVC's August 2016 affirmance, this finding by the Board is also

clearly erroneous. In *Cacciola v. Gibson*, 27 Vet. App. 45, 53 (2014), the CAVC determined that the discussions in *Hillyard I* and *II* regarding *what constitutes an issue are narrower than perhaps the decisions suggest*. [emphasis added]. *See United States v. County of Cook*, Ill., 170 F.3d 1084, 1088 (Fed.Cir.1999) (cases that do not squarely address an issue are not binding precedent); *Nat'l Cable Television Ass'n v. Am. Cinema Editors, Inc.*, 937 F.2d 1572, 1581 (Fed.Cir.1991) ("When an issue is not argued or is ignored in a decision, such decision is not precedent to be followed in a subsequent case in which the issue arises."). As argued heretofore, the denial of the issue of entitlement to an earlier effective date in the 2015 Board decision and 2016 CAVC affirmance was based on the absence of any record evidence of an earlier filing for DIC. *Id*. R at 367 - 375; R at 338 - 340. The issue in the earlier appeal is not the same as the issues currently on appeal as to the challenge to application of statutory and regulatory provisions.

Effect of Abandonment of an Issue

The *Cacciola* Court ruled that whether an appellant expressly abandons an issue on appeal, or the Court deems an issue abandoned by the appellant's *failure to assert any challenge and argument regarding the Board's decision on an issue*, the effect is the same—the appellant generally has relinquished his right to judicial review of the Board's decision on an issue. The Court, therefore, held that a

determination that an issue has been abandoned on appeal means that the Court has not reviewed the merits of the Board's decision. *Id*., at 57. Thus, the *Cacciola* Court concluded that:

> "...[a]n appellant's abandonment of the right to a decision by the Court on direct appeal of an issue in a Board decision does not otherwise preclude him from collaterally attacking the Board decision on that issue on the basis of CUE. Consistent with the Secretary's interpretation of § 20.1400(b)(1), an issue abandoned on appeal has not been decided by the Court and, therefore, allowing a claimant to seek revision does not create the anomalous situation of allowing a lower tribunal to review the decision of a higher tribunal. See *Winsett, DAV*, and *Smith*, all supra. *Id*., at 58.

In this case, the Board's finding that its decision has been subsumed by the CAVC's opinion is clearly erroneous in light of the holdings in *Cacciola* because Appellant, a pro se litigant, is deemed to have abandoned issues not raised and decided by the CAVC in the previous litigation. Thus, she can still attack, on grounds of CUE, an issue not previously decided by the CAVC. Mrs. Guzman did not raise the CUE revision issues (*ie*. 38 C.F.R. §3.153, 38 U.S.C. §5105 or M21-1MR manual issues) in her September 2015 appeal to the Court. Thus, she has either expressly abandoned, or is deemed to have abandoned those issues, in her 2015 appeal.

In *Pederson v. McDonald*, 27 Vet. App. 276, 284 (2015), amended, No. 13-1853, 2015 WL 674734 (Vet. App. Feb. 18, 2015), the Court reaffirmed that the body of the Court's decision in the direct appeal must be examined in any subsequent

CUE challenge regarding that issue to determine not simply whether the issue was abandoned but whether the issue was reviewed by the Court on the merits. *See Cacciola*, 27 Vet.App. at 57–58. An examination of the body of the court decision on direct appeal in Guzman shows by examination that neither 38 C.F.R. § 3.153, 38 U.S.C. §5105 nor the M21-1MR, Part IV, iii.3.A.3.d. was reviewed by the Board or the CAVC. Further, in Fn 4 of *Pederson*, the Court notes that representation by an attorney is a significant factor in its determination that the appellant's abandonment of these issues and waiver of the right to judicial review was knowing and intentional. See *Janssen v. Principi*, 15 Vet.App. 370, 374 (2001). As argued heretofore, Mrs. Guzman was not represented by counsel either below or in her prior 2015 appeal to the CAVC. Mrs. Guzman, a pro se litigant below, is deemed to have abandoned that issue.

Indeed, it would appear that the Secretary is in agreement that an issue not raised before the Court survives. See the Secretary's supplemental brief filed 10-03-2014 in the **en banc** case of *Pederson*, (Docket No. 13-1853) *Id*, page 12. He argues:

> To be sure, as submitted above and as expressed by the Secretary in Cacciola, absent a decision by the Court on the merits of an issue decided by the Board, an appellant may seek to revise the Board decision on that issue on the basis of CUE. Moreover, as previously explained, it is the Secretary's position that the waiver of the right to judicial review of a Board decision on certain matters, whether it results in a summary affirmance of the Board decision on an issue or the dismissal of the appeal of that issue, does not necessarily preclude the appellant from later seeking relief in the form of a request for revision of the

> Board decision on the basis of CUE. *Thus, an appellant is not without recourse should he fail to identify an obvious error but for which the outcome of his claim would have been manifestly different* [emphasis added].

The abandoned issues were not decided by the CAVC, which means that Appellant is free to attack, on grounds of CUE, issues not previously decided by the CAVC. Mrs. Guzman acted on her privilege to attack on grounds of CUE, by the instant collateral attack on the RO decision, when she filed her October 2017 request for revision based on CUE. *Id*., R at 85 - 92.

Basing its decision on subsumption, the 2020 Board erred by dismissing her revision request as moot.

Further solidifying the Board's error is the CAVC's later decision in *Porriello v. Shulkin*, 30 Vet. App. 1, 8 (2018). In *Porriello*, the Board concluded that the 1961 and 1968 RO decisions were subsumed by the May 2008 Board decision. The *Porriello* Court ruled, however, that this determination is erroneous. It said:

> Caselaw has not established whether a Board decision on a CUE motion can in these circumstances effect delayed subsuming. The legal issue involved in the 1961 and 1968 RO decisions—service connection for ulcerative colitis—is entirely different from that involved in the 2008 Board, 2010 Court, and 2013 Federal Circuit decisions—whether there was CUE in those earlier RO decisions. *See Manning v. Principi*, 16 Vet.App. 534, 541 (2002) (explaining that "a later [Board] decision's delayed subsuming of an RO decision occurs only where the Board decided the *same issue* that the RO decided and where the RO decision and [Board] review were based on the same factual basis" (citing *Brown v. West*, 203 F.3d 1378, 1381–82 (Fed. Cir. 2000)). [emphasis added].

The Court further ruled, in part:

> [If a] Board decision on one CUE theory could prevent further CUE allegations against those RO decisions that denied entitlement to service connection by entirely subsuming those decisions, it would be *contrary to caselaw providing that a determination on one specific allegation of CUE as to an RO decision does not prevent a claimant from raising a different CUE theory as to that decision*. See *Andre v. Principi*, 301 F.3d 1354, 1362 (Fed. Cir. 2002). [emphasis added]

Unlike the underlying facts of this case, Mr. Porriello had raised allegations of CUE which the court deemed substantively the same as the CUE allegations on his second appeal. So, although the Court affirmed the Board's decision finding res judicata in the case, as the allegations of CUE in both matters were substantively the same, the Court determined that the Board made an erroneous conclusion that prior Regional Office (RO) decisions regarding service connection for ulcerative colitis were subsumed by subsequent Board decision addressing whether there was CUE in those earlier RO decisions, the decision was on the merits, and parties were the same. *Id*.

The instant case, however, is distinguished from *Porrielo*. Unlike *Porrielo*, the instant appeal is Mrs. Guzman's first allegation of CUE in the RO decision, and the prior decision in 2015 was on the merits only as to an earlier effective date allegedly based on no prior claim having been filed. Also, unlike *Porrielo*, Guzman's prior decision was not on the merits on the CUE allegations, and the current appeal as to

the CUE issues was denied by the RO and dismissed by the Board at both levels on claimed subsumption. There are distinct differences in the issues on appeal between the original RO denial and Board decision and the latter issues raised in the CUE request for revision. The fact that an earlier effective date could be the ultimate end product is irrelevant. Moreover, to the extent that the presence of a representative has any bearing on the subsumption issue, here, as distinguished from *Porriello*, the parties are different. Mrs. Guzman was not represented below or at the Court in her first direct appeal which concluded in a 2016 CAVC memorandum decision. Claimant was represented by her current counsel in the 2019 CUE request for revision which is now before this Court.

II. The CAVC Should Exercise Its Equitable Powers to Honor Statutory and Regulatory Provisions Which Authorize and Endorse Entitlement to Benefits, Particularly Where Board Error Has Caused Harm and Prejudice to the Appellant; The Court's Exercise of This Power Would Summarily Grant Guzman's CUE Request

The gravamen of Sections 3.153 and 5105 provides that an application for benefits on a jointly prescribed form filed with the Social Security Administration (SSA) on or after January 1, 1957, will be considered a claim for death benefits and to have been received by VA as of the date of receipt with SSA. VA is required to recognize an application for SSA survivor benefits as an application for VA survivor benefits (ie., DIC benefits), even if the application is not received by VA. 38 U.S.C. §

5105, 38 C.F.R. §3.153. Although Mrs. Guzman filed a claim for Social Security death benefits within months of her husband death in June 1995, the VA failed to recognize this fact when the claimant filed a claim for DIC and other death benefits with the VA in May 2012 (*See* SOC, R at 463). The VA failed to recognize the earlier July 10, 1995 claim for DIC benefits mainly because it failed to follow the proper procedures set forth in VA's own M21-1MR adjudication manual in determining the proper effective date for any DIC claim filed in excess of a year after the veteran death. But for the VA's failure to correctly apply and follow the law, mainly occasioned by its failure to follow the correct procedures, the VA promulgated an erroneous and defective June 19, 2013 rating decision which was not adjudicated in accordance with law. Coincidently, an incorrect, prejudicial, and much later effective date for DIC was granted.

The June 19, 2013 RO decision is the product of CUE, and the Board also erred in affirming the RO's decision on direct appeal. The VA and Board failed to consider and properly apply the provisions of 38 C.F.R. §3.153 and 38 U.S.C. §5105. Further, the VA failed to follow its own manual procedures for determining the correct effective date of a DIC award for claimants who file for DIC benefits more than one year after the veteran's death. But for these errors, there would have been a manifestly different outcome which would have changed the results; the claimant

would have been granted an earlier effective date of June 1995. But for this clear and unmistakable error, the VA would have verified the fact that claimant's DIC application was filed on July 10, 1995; and the VA would have been required to award claimant service connected survivor benefits at least as of the date of the veteran's death, because the SSA death claim was filed within one year of the date of death of the veteran.

The documentary evidence of record shows that on July 10, 1995, Mrs. Guzman filed a Social Security death claim. The claim was granted on July 10, 1995 and Social Security death benefits were awarded to the claimant. *See* R at 96 - 97. This "manifestly different outcome" would have occurred because the aforementioned laws and procedures, when properly applied with the extant record before the VA in 2013, undebatably establishes by clear and unmistakable evidence Mrs. Guzman-Garcia's entitlement to an effective date as early as June 18, 1995 (the date of the veteran's death) for DIC and survivor's death benefits.

The evidence of record proves that the VA and Board's error is "undebatable" because "reasonable minds could only conclude that the original June 2013 RO decision was fatally flawed at the time it was made." *Russell v. Principi*, 3 Vet.App. 310, 313-14 (1992) (en banc). The Board's failure to address the applicable regulations, 38 C.F.R. § 3.153; instead, dismissing the CUE on the erroneous grounds

of subsumption - thereby providing inadequate reasons or bases - is a "misapplication of the law on CUE, which warrants reversal.

The Court should reverse because there is no dispute about the facts: The evidence of record proves that Mrs. Guzman filed her initial claim for DIC in 1995. The RO granted an erroneous and much later effective date. The Board affirmed that erroneous effective date. Appellant's request for revision based on CUE filed at the RO level was not subsumed by neither the 2015 Board nor the 2016 CAVC decision because the issues of CUE are distinctly different from the issue affirmed on direct appeal to the CAVC.

The Court should reverse the Board's determination that the CUE issues before the Board are moot. The Court should also use its equitable power to grant the Appellant's request for revision because under the plain meaning and application of the regulation, the claimant is entitled to an effective date of June 18, 1995, the date of the veteran's death. *Cantu v. Principi*, 18 Vet. App. 92, 99-100 (2004) (applying the plain meaning of a regulation to undisputed facts to determine that the appellant met the eligibility criteria for VA health care, notwithstanding the appellant's argument that vacatur was warranted because the Board did not make pertinent findings of fact regarding the issue). A remand for the Board to apply the regulation in the first instance to the undisputed facts of this case "would result in this Court's

unnecessarily imposing additional burdens on the B[oard] and [the Secretary] with no benefit flowing to the [claimant]." *Soyini v. Derwinski*, 1 Vet. App. 540, 546 (1991). Reversal is the appropriate remedy in cases in which the only permissible view of the evidence is contrary to the Board's decision. *Gutierrez v. Principi*, 19 Vet.App. 1, 10 (2004); *Johnson v. Brown*, 9 Vet.App. 7, 10 (1996).

It Would Amount to an Absurd Result If A Pro Se Litigant's Direct Appeal, Straight to the CAVC, Leads to Permanently Unfavorable Results, While a Claimant Who Later Files CUE in an Unappealed Decision May Ultimately Prevail

Mrs. Guzman's case has a somewhat tragic history, given the fact that she persistently prosecuted her claim on direct appeal as a pro se litigant, yet was met with unsuccessful results. Even when she got to the Court, she was unable to find counsel for representation, having been rejected, as the docket shows, by at least two attorneys. She always knew that the VA had committed error, yet as a pro se litigant, she was unequipped to successfully mount the correct statutory legal challenge to the 2015 Board's decision, which decision affirmed the RO's denial of an earlier effective date.

Several months after the CAVC entered mandate, Guzman hired her current counsel and moved to recall the mandate based only on what can be described as extraordinary grounds. See docket # 15-3625, motion filed March 2, 2017. The

underlying facts detailed in the recall motion with the attached Social Security/VA document exhibits clearly establish CUE in the VA and Board's decision. Unfortunately, the single judge denied the motion to recall mandate. At Section B, page 10 of this brief, the Appellant cites to the Court's statements and reasons for denying the motion to recall mandate. In essence, the CAVC says that while it is sympathetic to Appellant's misfortune, she has not shown good cause and unusual circumstances; there is nothing that can be done for Appellant because the Court is not a court of equity. Taking a seemingly hardline approach, the Court concluded that: "The appellant has not alleged, nor can the Court discern, that this judgment was obtained by fraud, a clerical mistake, or a judicial oversight." *Id*.

Congress could not have intended that a claimant who diligently pursues a claim straight up to the Court on direct appeal has no chance of prevailing on a later CUE claim, and should be permanently foreclosed from receiving statutorily entitled benefits, especially when the VA made the error.

This Court should exercise its equitable powers, since this issue is within the scope of its statutory jurisdiction, to ensure that Mrs. Guzman receives her statutorily entitled benefits. This is not extra-statutory relief. This is statutory relief under 38 C.F.R. 3.153, and for which Appellant is statutorily entitled. *Dean*, *Id*. at 4.

CONCLUSION

Appellant respectfully requests that this Honorable Court use its equitable powers to grant statutory relief under the applicable statutory and regulatory authority of 38 U.S.C. §5105 and 38 C.F.R. §3.153 which sanctions and authorizes entitlement to the benefit of an earlier effective date for DIC to which the Appellant is entitled, thereby summarily granting Appellant's request for revision based on CUE; or in the alterative, Appellant requests 1) reversal of the December 18, 2020 Board's decision which dismissed Appellant's request for CUE revision as moot, 2) reversal of the Board's decision and an Order that the RO's and the Board's decisions were not subsumed by the 2016 CAVC memorandum decision as to the issues in Appellant's Request for Revision Based Upon CUE; 3) an Order that the Board is equitably estopped from relying on subsumption, and further 4) an Order that the Board comply with the provisions of 38 C.F.R. §3.153; 38 U.S.C. §5105.

Respectfully submitted,

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